

25STCV26867 25STCV26867

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Case Number: 25STCV26867 Hearing Date: August 7, 2026 Dept: 510

No. 2 – Horizon Oxygen and Medical

Equipment, Inc. v. VA Care Hospice, Inc.

Plaintiff Horizon

Oxygen and Medical Equipment, Inc.'s Request for Default Judgment

Plaintiff Horizon Oxygen

and Medical Equipment, Inc. requests court judgment by default against Defendant VA Care Hospice, Inc. Plaintiff's application for default judgment suffers multiple defects.

Summary of Case

A request for default

judgment must include "a brief summary of the case identifying the parties and the nature of plaintiff's claim." (Cal. Rules of Court, rule 3.1800(a)(1).)

There is no such summary included.

Excessive Damages

Plaintiff requests

default judgment for \$77,480.47 in damages. "A default judgment greater than the amount specifically demanded in the complaint is void as beyond the court's jurisdiction." (Airs Aromatics, LLC v. CBL Data Recovery Technologies, Inc. (2018) 23 Cal.App.5th 1013, 1018 (Airs Aromatics).) The complaint's prayer for relief seeks \$61,305.81. (See Compl., prayer, ¶ 1.)

To recover the damages

Plaintiff requests, it must amend the complaint to specifically demand that amount. Doing so would vacate Defendant's default. After a plaintiff "file[s] an amended complaint praying for a different amount of damages and/or other appropriate relief... she must serve her amended complaint on defendants, who will be entitled to file a new answer; all issues will then be at large, including liability." (Greenup v. Rodman (1986) 42 Cal.3d 822, 830; accord *Airs Aromatics*, supra, 23 Cal.App.5th at p. 1025 [filing amended complaint vacates default].) Any amended complaint must be served in the manner of a summons. (*Engbretson & Co. v. Harrison* (1981) 125 Cal.App.3d 436, 444.) Plaintiff may also modify its request for default judgment to seek only those damages specified in the complaint. Because the interest calculation depends on the total damages sought, the prejudgment interest would need to be re-calculated.

Prejudgment Interest

Plaintiff also requests excessive interest. Plaintiff seeks \$4,648.83 in interest based on an annual rate of 30%. Counsel claims that the 30% annual interest rate is supported by the agreement between the parties, which states, "Provider may charge Hospice interest at a rate equal to two and one half percent (2½%) per month, or the maximum amount allowed by State law, whichever is less, on past due invoices." (Compl., Ex. 1, Agreement, § 1.03E.)

The California

Constitution, Article XV, § 1 limits interest to 10% unless an exemption applies. Los Angeles Superior Court Local Rule, rule 3.206 provides, "If interest is requested in excess of the usury limitations of California Constitution Article XV, Section 1, proof must be presented of plaintiff's exemption from the usury limitations unless an exemption has been pleaded in the complaint and admitted by the entry of default."

The complaint does not plead an exemption from the usury limitations. Plaintiff did not submit proof of exemption. Plaintiff must either present proof of exemption or request interest no greater than 10%.

Excessive Attorney Fees

Plaintiff also seeks

excessive attorney fees. Attorney fees for a default judgment are generally limited to a specified schedule based on the amount of damages. (Local Rules 3.207(a), 3.214(a).) A plaintiff may recover “a fee greater than listed in the [default] schedule because of extraordinary services.” (3.214(d).) Plaintiff’s proposed judgment includes a request for \$5,500 in attorney fees. That is greater than the schedule, which provides for attorney fees of “\$1,890 plus 2% of the excess over \$50,000” for judgments between \$50,000.01 to \$100,000. (Rule 3.214(a).) Plaintiff does not show extraordinary services justifying a greater fee.

Disposition

Plaintiff Horizon Oxygen and Medical Equipment, Inc.’s request for default judgment is denied without prejudice.